

25STCV29557 25STCV29557

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-04

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C309%2C08%2F04%2F2026

Source SHA-256: f122ceab4758fa997917bc662bbc58d5eb0a92a4de8d0f6b70351de34e41ee86

Case Number: 25STCV29557 Hearing Date: August 4, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT 309

TENTATIVE

RULING

PARVIZ PANADDAR, et al.

vs.

MARLENA MARGARET TORREANO,

et al.

Case

No.: 25STCV29557

Hearing Date: August 4, 2026

Defendants' motion to strike is GRANTED.

On 10/9/2025, Plaintiffs Parviz

Panaddar and Mahnaz Shayefar (collectively, Plaintiffs) filed suit against

Defendants Marlena Margaret Torreano, Kent McKewon, Salk Winston Moore, and

Uber Technologies, alleging: (1) motor vehicle negligence; (2) negligence; (3)

negligence; (4) negligent hiring, supervision, and retention; (5) negligent entrustment; and (6) negligence per se.

On 6/11/2026, Defendants Marlana Margaret Torreano and Kent McKewon (collectively, Defendants) moved to strike portions of Plaintiffs' Complaint.

Discussion

Defendants move to strike Plaintiffs' prayer for punitive damages and attorney fees.

After review, the Court agrees.

As for the first contention, all of Plaintiffs' claims sound in negligence. Punitive damages are available only where a defendant is guilty of oppression, fraud, or malice, proven by clear and convincing evidence. Civil Code § 3294(a). Under these principles, Plaintiffs' request for punitive damages is inadequately pled. Plaintiffs allege in their Complaint that Defendant Torreano drove at an unsafe speed, followed too closely, failed to maintain a proper lookout, and allegedly used a cell phone while driving. (Complaint ¶¶ 76, 77.) Even if accepted as true, these allegations describe routine traffic negligence commonly alleged in rear-end collision cases. California courts have consistently held that speeding, distracted driving, inattention, or Vehicle Code violations, without more, do not rise to the level of malice or conscious disregard required for punitive damage. (See e.g. *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 894.) Punitive damages require conduct that is despicable and carried on with a willful and conscious disregard for the safety of others. (Civil Code § 3294(c).)

As for attorney fees, under California law, each party bears its own attorney's fees unless a statute, contract, or other law provides otherwise. (CCP § 1021.) A prayer for attorney's fees must be supported by specific factual allegations identifying the legal basis for such fees.

Here, Plaintiffs do not allege any basis contractual or statutory basis for attorneys fees.

Based on the foregoing, Defendants' motion to strike is granted.

It is so
ordered.

Dated:
July , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must
send an email to the court at
by 4 p.m. the day prior as directed by the instructions provided on the court
website at www.lacourt.org. If a party submits
on the tentative, the party's email must include the case number and must
identify the party submitting on the tentative.
If all parties to a motion submit, the court will adopt this
tentative as the final order. If the department
does not receive an email indicating the parties are submitting on the
tentative and there are no appearances at the hearing, the motion may be placed
off calendar. For more information, please
contact the court clerk at (213) 633-0517.